

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

 **ORIGINAL
FILED**

IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ MAY 26 2009 ★

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AFFECTION JOHNSON,

Plaintiff,

COMPLAINT BROOKLYN OFFICE

-against-

09 2202

Jury Trial Demanded

THE CITY OF NEW YORK, POLICE OFFICER
ALBERT M. LLOYD, tax # 936963, POLICE OFFICER
LEONARD CLARKE, shield # 27183, SERGEANT
EDMUND SMALLS, shield # 01474, JOHN DOES 1-5,

Defendants.
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VITALIANO, J.

J. ORENSTEIN, M.J.

PRELIMINARY STATEMENT

1. This is an action brought pursuant to 42 U.S.C. § 1983 alleging civil rights violations by the City of New York and individuals employed by the New York City Police Department ("NYPD"). Plaintiff alleges that, on August 14, 2008, NYPD officers arrested him without cause, illegally strip searched him and falsified evidence against him in violation of the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Plaintiff seeks compensatory and punitive damages, an award of attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c).

PARTIES

4. Plaintiff is a resident of the State of New York, County of Kings.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Albert M. Lloyd, Leonard Clarke, Edmund Smalls, and John Does 1-5 are members of the NYPD. These officers were acting under color of state law and in their capacities as NYPD officers at all relevant times herein. The officers are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The officers are sued in their individual capacities.

STATEMENT OF FACTS

7. On August 14, 2008, at approximately 8:00 p.m., plaintiff was a guest at a barbeque taking place in front of 401 East 23rd Street, Brooklyn, New York.

8. Because it started to rain, the guests of the barbeque went inside the lobby of the building.

9. Approximately ten minutes later, several male police officers in uniform, including Officer Albert Lloyd, Officer Leonard Clarke and Sergeant Edmund Smalls, entered the building.

10. Without legal cause, the officers, acting concert, ordered plaintiff and several men who were attending the party, including Randy Spivey and Anthony Lawrence, to get against the wall.

11. The other officers, acting in concert, searched plaintiff and the other men without legal cause.

12. No illegal contraband was found on plaintiff.

13. Nevertheless, the officers, acting in concert, arrested plaintiff and some or all of the other men.

14. Officers put plaintiff in a police car and took him to the 70th Precinct.

15. Shortly after being brought inside the precinct, one of the officers, possibly Officer Lloyd, Officer Clarke or Sergeant Smalls, illegally strip searched plaintiff in a precinct bathroom and ordered the naked plaintiff to squat.

16. Because the officer left the door to the bathroom open during the strip search, several others prisoners observed plaintiff's naked body.

17. No illegal contraband was found on plaintiff.

18. After the strip search, plaintiff was locked in a cell.

19. On August 15, 2008, at approximately 1:30 a.m., plaintiff was released from the precinct with a desk appearance ticket.

20. Some time between August 15, 2008 and September 17, 2008, Officer Lloyd, in furtherance of a conspiracy with Clarke, Smalls and John Does 1-5, misrepresented to the Kings County District Attorney's Office that plaintiff was found in possession of marijuana.

21. As a result of the aforesaid misrepresentation, false criminal charges were filed against plaintiff.

22. Plaintiff went to court on approximately three occasions.

23. On May 4, 2009, the false criminal charges were adjourned in contemplation of dismissal.

24. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered a loss of liberty, emotional distress, mental anguish, fear, anxiety, humiliation, and embarrassment.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST
ALBERT LLOYD, LEONARD CLARKE,
EDMUND SMALLS AND JOHN DOES 1-5**

25. Plaintiff repeats the foregoing allegations.

26. The conduct of Albert M. Lloyd, Leonard Clarke, Edmund Smalls, and John Does 1-5, as described herein, amounted to false arrest, an illegal strip search and fabrication of evidence in violation of 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S FEDERAL CLAIM AGAINST
THE CITY OF NEW YORK**

27. Plaintiff repeats the foregoing allegations.

28. The City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

29. Upon information and belief, the City of New York, at all relevant times, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations that the officers involved in this case are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

30. In fact, Officer Leonard Clarke is a defendant in the civil rights case, Hutchinson, et al. v. City of New York, et al., CV 09 01175 (DLI) (RER) (E.D.N.Y.), where it is alleged that Clarke engaged in police misconduct.

31. Despite the above, the City of New York exercised deliberate indifference by failing to take remedial action.

32. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them.

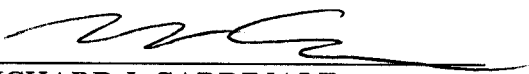
33. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

34. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as this Court may deem just and proper.

DATED: May 26, 2009
Brooklyn, New York


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